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Seven Hellenes and One Christian in the Endless Peace Treaty of 532

ABSTRACT The so-called Endless Peace treaty, signed between Rome and Persia in 532, contained several provisions that regulated issues of population transfer. According to the famous evidence of Agathias of Myrina, in the treaty there was also a clause guaranteeing safety from persecution and the tolerance of religious beliefs in the territory of the Roman Empire for the seven Neoplatonic philosophers returning from their Persian emigration.

The present article proposes a re-evaluation of the clause mentioned by Agathias by extracting parallel information from an East-Syriac hagiographical source: an anonymous account of martyrdom of the high-profile Persian Christian convert Mar Grigor. The study deconstructs Agathias' evidence regarding the circumstances of the philosophers' emigration and return, and examines the available set of "conventional" sources on how the Endless Peace treaty regulated the status of different categories of displaced people. The investigation proceeds with an analysis of the *Martyrdom of Mar Grigor*, arguing for the importance of the East-Syriac hagiographical account for a comprehensive reconstruction of the conditions of the Endless Peace agreement. Assessing information provided by the *Martyrdom of Mar Grigor* and other available data, the author reveals the high relevance of the East-Syriac evidence for the discussion of the so-called clause of protection.

The scope of the article is to demonstrate, for the first time in historiography, that the clause, included in the treaty to protect the seven Hellenic philosophers upon their return to the Christian Roman Empire, was not unilateral. It is suggested that the same diplomatic agreement contained a similar promise of safe conduct for the Christian Persian general, Pīrān-Gušnasp / Mar Grigor, coming back from Roman captivity to Zoroastrian Persia. KEYWORDS Mar Grigor, Endless Peace Treaty, Diplomacy, Justinian, Chosroes, Agathias, Emigration, Extradition

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INTRODUCTION

In 2008 Sebastian Brock described Syriac hagiography as "a little-tapped resource" and noted that the Syriac texts remained largely marginalized by historians of late antiquity, despite representing the third largest surviving literature from the epoch.[1] The dynamic developments of Syriac studies and new publications are rapidly changing this situation.[2] Among the recent publications of the sixth-century martyrological hagiographies from the Church of the East is the new edition, translation, and commentary of the *Martyrdom of Mar Grigor* made by Florence Jullien.[3] In this article I seek to integrate the material provided by the anonymous martyrdom account into the historical reconstruction of the terms of the diplomatic agreement concluded by Justinian and Chosroes in 532 C.E.

According to Agathias of Myrina, seven Neoplatonic philosophers—refugees from the increasingly Christian Empire of Justinian—were present at the Persian court when the Endless Peace treaty was being negotiated and signed. The seven Hellenes did not remain in Persia for long and Agathias mentions a diplomatic deal struck on their behalf to facilitate the return. On the insistence of the shah, a peculiar condition was inserted in the contract to guarantee the security and, using an anachronistic expression, the "freedom of religion" of the philosophers upon their return home from their Persian asylum. Targeting a small group of individuals and seemingly unilateral, this clause in the treaty appears unprecedented for late antique diplomacy. The reasons for the philosophers' departure and the consequences of their return have long puzzled

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1. Sebastian P. Brock, "Saints in Syriac: A Little-Tapped Resource," *Journal of Early Christian Studies* 16.2 (2008): 181–196, at 181.

2. Many of these materials are also becoming more easily available thanks to open-access resources (collected at http://syri.ac/).

3. *Martyrdom of Mar Grigor* (Corpus scriptorum Christianorum Orientalium 658; Scriptores Syri 254). Edition: Florence Jullien, ed., *Histoire de Mār Abba, catholicos de l'Orient ; Martyres de Mār Grigor, général en chef du roi Khusro Ier et, Martyre de Mār Yazd-panah, juge et gouverneur* (Louvain: In Aedibus Peeters, 2015); (Corpus scriptorum Christianorum Orientalium 659; Scriptores Syri 255). Translation: Florence Jullien, ed., *Histoire de Mār Abba, catholicos de l'Orient ; Martyres de Mār Grigor, général en chef du roi Khusro Ier et, Martyre de Mār Yazd-panah, juge et gouverneur* (Louvain: In Aedibus Peeters, 2015).

scholars. However, the culmination of their emigration, crucial for the subsequent fate of the seven Hellenes—the diplomatic provision made on their behalf by the Persian shah—has attracted less scholarly attention, not least due to the lack of data.

To some extent, this scarcity of information can be compensated by introducing additional data from the Syriac source. Details of the life of Mar Grigor, a Persian general, a Christian, and a high-ranking captive at the court of Justinian, have never been previously scrutinized to complement the apparently unique evidence by Agathias. Analysis of the Syriac "martyrdom" in this context can improve our understanding of Roman-Persian diplomatic relations by supplementing our knowledge of the conditions of the Endless Peace treaty. I suggest that another clause of protection, reciprocating the philosophers' safe conduct, was inserted in the Endless Peace treaty at Justinian's insistence to ensure the protection of Mar Grigor in Persia. Conjectures based on the *Martyrdom of Mar Grigor* can bring a new perspective into the discussion on the circumstances of the repatriation of the seven Platonists.

1. AGATHIAS 2.30—31

According to Agathias, the seven Hellenic philosophers—Damascius of Syria, Simplicius of Cilicia, Eulamius of Phrygia, Priscian of Lydia, Hermes and Diogenes of Phoenicia, and Isidore of Gaza—moved to Persia "because they did not share the view of God prevailing among the Romans and thought that the Persian state was far better."[4] Attracted by the idealized picture of the land of "Plato's philosopher king" and also because "they had been forbidden by law to live here in security since they did not subscribe to the existing order,"[5] the seven are said to have moved to Persia with an intention to stay there permanently.[6] We do not know any details about how they traveled. Agathias tells us, however, that although well received, the philosophers soon became disillusioned: the Persian way of life, religious practices, customs, and the king himself proved to be sources of disappointment. The historian concludes that for all these reasons the philosophers returned home as soon as possible.[7]

Agathias' text is the only surviving source that describes the philosophers' emigration and return. This account longprecedes the events described in

4. Agathias *Histories* 2.30.3. I will be quoting from the translation by Averil Cameron, *Agathias on the Sassanians*, *Dumbarton Oaks Papers* 23–24 (1969).

5. Agathias 2.30.4.

6. Agathias 2.30.4: *ὡς ἐκεῖσε τὸ λοιπὸν βιωσόμενοι.*

7. Agathias 2.31.2.

Agathias' main narrative and appears as an appendix to the strongly biased anti-Chosores and anti-Persian excursus on Iranian history and religious customs.[8] While the evidence—which probably originates from an account written by one of the philosophers (Damascius[9] or Simplicius[10])—is mostly considered trustworthy,[11] debates on its content continue.

The episode described by Agathias, taken in the context of the evidence provided by other sources, makes it possible to suggest that the move of the philosophers was triggered by the intensification of Justinian's persecution of pagans,[12] the prohibition of philosophical teaching in Athens[13] and the restrictions of anti-pagan legislation.[14] The possible connection between the events which took place in 529,[15] the departure of the philosophers, and the alleged closure of the Athenian Neoplatonic School, has incited an extensive scholarly discussion.[16] The homecoming of the philosophers, and in

8. Averil Cameron, *Agathias on the Sassanians*, 69.

9. Alan Cameron, "The Last Days of the Academy at Athens," in Alan Cameron, *Wandering Poets and Other Essays on Late Greek Literature and Philosophy* (Oxford, New York: Oxford University Press, 2016): 218–219.

10. Averil Cameron, *Agathias on the Sassanians*, 175.

11. Averil Cameron, *Agathias on the Sassanians*, 175; R. L. Fox, "Movers and Shakers," in *The Philosopher and Society in Late Antiquity: Essays in Honour of Peter Brown*, ed. A. Smith (Swansea: Classical Press of Wales, 2005): 19–50; Alan Cameron, *Last Days* (2016), 221–222 and 215 against Michel Tardieu, *Les paysages reliques: Routes et haltes Syriennes d'Isidore à Simplicius* (Bibliothèque de l'École Des Hautes Études, 94, Louvain: Peeters, 1990), 131, 121. See also: Anthony Kaldellis, *Procopius of Caesarea: Tyranny, History, and Philosophy at the End of Antiquity* (Philadelphia: University of Pennsylvania Press, 2004), 101 and note 24; J. A. S. Evans, *The Age of Justinian: The Circumstances of Imperial Power* (New York: Routledge 2000), 70; Polymnia Athanassiadi, "Persecution and Response in Late Paganism: The Evidence of Damascius," *The Journal of Hellenic Studies* 113 (1993): 1–29, at 25, note 184.

12. Malalas *Chronographia* 18.42.

13. Malalas 18.47.

14. *Codex Justinianus* 1.11.10.

15. Regarding the dating of *C.J.* 1.11.10 see: Simon Corcoran, "Anastasius, Justinian, and the Pagans: A Tale of Two Law Codes and a Papyrus," *Journal of Late Antiquity* 2.2 (November 5, 2009): 183–208 at 203.

16. Alan Cameron, "The Last Days of the Academy at Athens," *Proceedings of the Cambridge Philological Society* 195.15 (1969): 7–29; Alan Cameron, *Last Days* (2016); Edward Watts, "Justinian, Malalas, and the End of Athenian Philosophical Teaching in A.D. 529," *The Journal of Roman Studies* 94 (2004): 168–82; Gonzalo Fernández Hernández, "Justiniano y la clausura de la Escuela de Atenas," *Erytheia: Revista de estudios bizantinos y neogriegos*, 2 (1983): 24–30; G. Hällström, "The Closing of the Neoplatonic School in A.D. 529: An Additional Aspect," in *Post-Herulian Athens : Aspects of Life and Culture in Athens A.D. 267–529*, ed. Paavo Castrén (Helsinki: Suomen Ateenan-Instituutin Säätiö, 1994): 141–65.

particular the place to which they returned and their activities afterwards, are also the subject of numerous debates.[17]

Clause of protection

Agathias remarks that the philosophers "benefited from their stay abroad in an important and conspicuous way, such that their life from then on ended in the most pleasant and agreeable manner."[18] While the primary impulse causing the initial flight to Persia was the philosophers' insecurity in the Christian Roman Empire, the move abroad was likely further to compromise their loyalty in the eyes of Roman authorities.[19] Agathias further clarifies that ". . . when about this

17. The three main hypotheses have been proposed, in favour of Athens: Alan Cameron, *Last Days* (1969); Alan Cameron, *Last Days* (2016); Alexandria: Michel Tardieu, *Les paysages reliques: Routes et haltes Syriennes d'Isidore à Simplicius* (Louvain: Peeters, 1990); Harran: Michel Tardieu, "Ṣābiens Coraniques et 'Ṣābiens' de Ḥarrān," *Journal Asiatique* 274.1 (1986): 1–44; Tardieu, *Les paysages reliques*; Athanassiadi, "Persecution and Response," 24–29; Ilsetraut Hadot, Introd. and ed., *Simplicius. Commentaire sur le Manuel d'Epictète* (Leiden; New York: E.J. Brill, 1996), 12. See also: H. Blumenthal, "529 and Its Sequel. What Happened to the Academy?" *Byzantion* 48 (1978) : 369–85; Pierre Chuvin, *Chronique des derniers païens: La disparition du paganisme dans l'Empire Romain, du règne de Constantin à celui de Justinien* (Paris: Belles Lettres : Fayard. 2009, 3rd edition); Joel Walker, "The Limits of Late Antique Philosophy between Rome and Iran," *Ancient World* 33.1 (2002): 45–69, at 62–65; Edward Watts, "Where to Live the Philosophical Life in the Sixth Century? Damascius, Simplicius, and the Return from Persia," *Greek, Roman, and Byzantine Studies* 45.3 (2010): 285–315, at 286. For the motives for leaving and returning: Udo Hartmann, "Geist im Exil. Römische Philosophen am Hof der Sasaniden," in *Grenzüberschreitungen. Formen des Kontakts zwischen Orient und Okzident im Altertum*, ed. Monika Schuol, Udo Hartmann, and Andreas Luther, *Oriens et Occidens* 3 (Stuttgart: 2002): 123–60; Katarzyna Maksymiuk, "W poszukiwaniu "idealnego państwa". Kilka uwag o pobycie filozofów neoplatońskich w Iranie," in *Filozofia życia. W poszukiwaniu mądrości, piękna i dobra*, ed. E. Jamroch, J. Kunikowski, 2 (Siedlce/Drohiczyn, 2011): 473–482.

18. Agathias 2.31.3: ἀπώναντο δὲ ὅμως τῆς ἐκδημίας, οὐκ ἐν βραχεῖ τινι καὶ ἠμελημένῳ, ἀλλ' ὅθεν αὐτοῖς ὁ ἐφεξῆς βίος ἐς τὸ θυμῆρές τε καὶ ἥδιστον ἀπετελεύτησεν.

19. The Roman state tended to associate long-term movement across the border with civil disloyalty (in particular, in the case of a military context: military deserters were severely punished if they returned [*Digest* 48.19.38; 49.16.3.4; 49.16.3.10–11]); prisoners of war had to prove that they had been captured by force in order to avoid punishment and regain their rights and citizenship (*Dig*. 49.16.5.5). In international relations, a state of alliance meant that the partners were expected and obliged not to accept fugitives of any kind, and to extradite those whom they previously had accepted (e.g. Malchus fr. 2; ed. and transl. R. C. Blockley, *The Fragmentary Classicising Historians of the Later Roman Empire : Eunapius, Olympiodorus, Priscus and Malchus* [Liverpool: Francis Cairns, 1983]; Procopius *Wars* 5.3; 7.16). Requests for the extradition of runaways frequently accompanied diplomatic negotiations. See Ekaterina Nechaeva, *Embassies, Negotiations, Gifts: Systems of East Roman Diplomacy in Late Antiquity* (Stuttgart: Franz Steiner Verlag, 2014), 111. Udo Hartmann assumes that the philosophers, who could have crossed the border during an armistice, would not have been considered guilty of treason. Hartmann (*Geist Im Exil*, 152–153, note 96) bases his assumption on the regulations of the treaty of 561, which excepted from punishment those who were passing on the enemy's side in times of war (Menander *History fr.* 6.1). However, there seems to be no reason to extrapolate application of this very peculiar article of a later diplomatic agreement to the situation of

time the Romans and the Persians made a peace treaty, there was a clause in the agreement which stipulated that these men should be allowed to return to their own country and live there henceforth in safety, without being forced to adopt opinions which they did not hold, or to change their own faith, For Chosroes would only settle and ratify the peace on these terms."[20] This condition of the peace treaty seems quite remarkable and deserves special consideration. Being unique in late antique diplomacy, it has, nevertheless, attracted little scholarly attention.[21]

It may be argued that diplomatic agreements between Rome and Persia, which included articles protecting religious groups, bear some similarity to the clause in question. Thus, the treaty made between Justinian and Chosroes in 562 had an annex guaranteeing freedom of worship to the Christians in Persia.[22] The peace agreement of 422 between Theodosius II and Vahram V included a clause protecting the Christians,[23] and probably a similar one for the Zoroastrians.[24] There is, however, a significant difference between those agreements and the clause described by Agathias: the latter was meant to

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the philosophers (for this article see Michael R. Maas, "Backdrop to Exile: Imperial Perspectives on the World's Communities in the Age of Justinian," in *Movilidad forzada entre la Antigüedad Clásica y Tardía*, ed. Margarita Vallejo Girvés, Juan Antonio Bueno Delgado, and Carlos Sánchez-Moreno Ellart (Alcalá de Henares: Universidad de Alcalá, Servicio de Publicaciones, 2015), 161–76 at 165; Ekaterina Nechaeva, "Défection et trahison. Les transfuges entre la législation et la Diplomatie de l'Antiquité Tardive," in *Thémis en diplomatie: Droit et arguments juridiques dans les relations internationales de l'Antiquité Tardive à la fin du XVIIIe siècle*, ed. Nicolas Drocourt, Eric Schnakenbourg (Rennes: Presses Universitaires de Rennes, 2016), 223–241, at 234–239).

20. Agathias 2.31.4: ἐπειδὴ γὰρ κατ' ἐκεῖνο τοῦ χρόνου Ῥωμαῖοί τε καὶ Πέρσαι σπονδὰς ἔθεντο καὶ ξυνθήκας, μέρος ὑπῆρχε τῶν κατ' αὐτὰς ἀναγεγραμμένων τὸ δεῖν ἐκείνους τοὺς ἄνδρας ἐς τὰ σφέτερα ἤθη κατιόντας βιοτεύειν ἀδεῶς τὸ λοιπὸν ἐφ' ἑαυτοῖς, οὐδὲν ὁτιοῦν πέρα τῶν δοκούντων φρονεῖν ἢ μεταβάλλειν τὴν πατρῴαν δόξαν ἀναγκαζομένους. οὐ γὰρ ἀνῆκεν ὁ Χοσρόης μὴ οὐχὶ καὶ ἐπὶ τῷδε συστῆναι καὶ κρατεῖν τὴν ἐκεχειρίαν.

21. Rainer Thiel analyses the clause, focusing on the destination of the philosophers' return. Rainer Thiel, *Simplikios und das Ende der neuplatonischen Schule in Athen* (Stuttgart: Franz Steiner Verlag, 1999), 19–24.

22. Menander *fr.* 6.1. 398–407; ed. and trans. R. C. Blockely, *The History of Menander the Guardsman* (Liverpool: Francis Cairns, 1985). See: Geoffrey Greatrex, Samuel N. C. Lieu, eds., *The Roman Eastern Frontier and the Persian Wars, 2, AD 363–630: A Narrative Sourcebook* (London: Routledge, 2002), 133–134; Kaldellis, *Procopius*, 252, note 24; R. C. Blockley, *The History of Menander the Guardsman* (Liverpool: Francis Cairns, 1985), 259, note 67.

23. Socrates Scholasticus *Historia Ecclesiastica* 7.20; Theophanes *Chronographia* AM 5921.

24. R. C. Blockley, *East Roman Foreign Policy: Formation and Conduct from Diocletian to Anastasius* (ARCA, Classical and Medieval Texts, Papers, and Monographs 30. Leeds: Francis Cairns, 1992), 58, 201 note 40; Beate Dignas, Engelbert Winter, *Rome and Persia in Late Antiquity: Neighbours and Rivals* (Cambridge: Cambridge University Press. 2007), 226; Maas, "Backdrop to Exile."

protect not a religious community, but only the seven individuals,[25] which seems unprecedented in the late Roman diplomatic context.

Another striking feature is the apparently unilateral character of the clause. While matters of political, military, territorial, or financial concessions agreed upon in diplomatic contracts could be inequitable, depending on the balance of forces between the partners, communication on a symbolic level tended to maintain parity between the two states.[26] Due to the unprecedented character of the clause, it is hard to provide a correct analogy; however, it seems that this protection of individuals should rather be referred to the latter category. The condition envisioned an intrusion into the affairs of one side. Unreciprocated, such intrusion would have created an imbalance of status between the realms, which appears highly unlikely.

2. THE ENDLESS PEACE TREATY AND THE STATUS OF DISPLACED PEOPLE

The peace treaty that included the clause described by Agathias was the so-called Endless or Eternal Peace treaty,[27] signed between Rome and Persia, most likely in the summer of 532, to end the long period of confrontations. Negotiations took several months before the sides managed to agree on the terms.[28] Information about the conditions of the Endless Peace treaty is scattered through several sources, with the most detailed accounts being given by Procopius of Caesarea[29] and John Malalas.[30] The treaty regulated

25. J.A. Evans goes as far as to assume that "it was no doubt the philosophers themselves who suggested this clause to Khusro" (Evans, *The Age of Justinian*, 70), and Athanassiadi ascribes the authorship of the clause to Damascius (Athanassiadi, "Persecution and Response, " 25).

26. See e.g. Matthew P. Canepa, *The Two Eyes of the Earth: Art and Ritual of Kingship between Rome and Sasanian Iran* (Berkeley: University of California press, 2009), 128–129.

27. Peace agreements could be concluded for different durations of time, and some peace treaties were declared infinite, as was this one: Malalas 18.76; Procopius *Wars* 1.22.17; *CJ* 1.27.2. The real difference was not in the actual duration of a contract (this peace lasted for less than eight years), but in the modes of arrangement for the contribution payments. Evangelos K. Chrysos, "Some Aspects of Roman-Persian Legal Relations," *Kleronomia* 8 (1976): 7–11, at 30; Nechaeva, *Embassies*, 108. See also Karl Güterbock, *Byzanz und Persien in ihren diplomatisch-völkerrechtlichen Sezichungen im Zeitalter Justinians: ein Beitrag zur Geschichte des Völkerrechts* (Berlin, 1906), 43, 60–61.

28. Procopius *Wars* 1.22.1–16.

29. Procopius *Wars* 1.22.15–19. Though already absent from the eastern front at the time of the conclusion of the peace, Procopius must have had rather detailed sources, probably having access to official documents and "to the correspondence between the envoys" (Dignas and Winter 2007, 105).

30. Malalas 18.76: Malalas' report of the campaign of 531 is particularly detailed, originating probably from an official report of the investigation regarding the defeat in the battle of Callinicum, and perhaps from the *magister officiorum* Hermogenes. Malalas 18. 65; Geoffrey Greatrex, *Rome and*

territorial, financial, and military arrangements and concessions. It also included several articles regarding the exchange of captives and other displaced people. It seems important to look at the "protecting clause" against the background of other articles concerning the status of different categories of "migrants."

Iberian refugees

One of the major causes of tension between the powers was the competition for influence and control over the Caucasus. In the early 520s, the Christian kingdom of Iberia attempted to escape Persian control by seeking Roman support.[31] The Roman intervention of 526/527 was indirect and unsuccessful, resulting in the flight of Iberian nobility in the Roman Empire.[32] According to the Endless Peace treaty as recounted to by Procopius, while Iberia remained in Persian hands,[33] these refugees were free to choose whether to stay or to come back and, notes Procopius, "there were many who remained and many also who returned to their ancestral homes."[34]

Return of captured forts and prisoners

After tense negotiations, the sides agreed to return to each other the forts that were seized during war. The Romans gave back the Armenian forts of Pharangium and Bolum, while the Persians returned Sarapanis and Scanda in Lazica.[35] Malalas mentions that the forts were mutually returned together with the captured inhabitants.[36]

Captive exchanges

Sources also mention two individual exchanges of prominent captives that occurred as a result of this peace. A Roman military commander, Domitziolus (or

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Persia at War, 502–532 (Leeds: Francis Cairns, 1998), 194–195 and 66–67; Elizabeth Jeffreys, Brian Croke, and Roger Scott, eds., *Studies in John Malalas* (Sydney: Australian Association for Byzantine Studies, 1990), 167–216.

31. Procopius *Wars* 1.12.2–6.

32. Procopius *Wars* 1.12.11–19. For the details, see: Greatrex, *Rome and Persia*, 139–147, 215; David Braund, *Georgia in Antiquity: A History of Colchis and Transcaucasian Iberia, 550 BC-AD 562* (Oxford: Clarendon Press, 1994), 282.

33. About the status of Iberia: Braund, *Georgia in Antiquity*, 290.

34. Procopius *Wars* 1.22.16. Translation by H. B. Dewing in: Anthony Kaldellis, ed., *Prokopios. The Wars of Justinian* (Indianapolis: Hackett Publishing Company, 2014), 58.

35. Procopius *Wars* 1.22.18. Chosroes was initially reluctant to give back the forts in Lazica, and the sudden and harsh reaction of Justinian significantly jeopardised the negotiations (Procopius *Wars* I.22. 3–16).

36. Malalas 18.76.

Domnentiolus[37]), a nephew of military commander Buzes,[38] was taken prisoner by the Persians in the battle near Callinicum in April of 531.[39] He was exchanged for a Persian nobleman, Izdegerd,[40] a nephew of Hormizd,[41] the ruler of Arzanene[42] in Persarmenia, who had been taken prisoner by the Romans in the summer of 531.[43] Pseudo-Zacharias' description of the circumstances of the capture of Domitziolus is very detailed and probably follows some local Amidan source.[44] The capture of Izdegerd is also referred to comprehensively and Pseudo-Zacharias is the only source that mentions Izdegerd and this exchange.[45]

Another exchange of captives is described by Procopius. He informs us that Dagaris, a bodyguard of one of the Roman military commanders (Sittas or Dorotheus[46]), had previously been sent on a spy mission in Armenia and was captured by Hun allies of Persia in 530.[47] He was then was returned to the Romans as a result of the treaty. In exchange, the Persians received "another

37. A. H. M. Jones, J. R. Martindale, *The Prosopography of the Later Roman Empire* (Cambridge: Cambridge University Press, 1992), 3 (PLRE III), s.v. Domnentiolus, 413.

38. PLRE III, s.v. Buzes, 254–256.

39. Zacharias *Historia Ecclesiastica* 9.4.

40. Zacharias *H.E.* 9.5.

41. Greatrex, Lieu, *Eastern Frontier*, 268, note 43.

42. Michael Whitby, "Arzanene in the Late Sixth Century," in *Armies and Frontiers in Roman and Byzantine Anatolia: Proceedings of a Colloquium Held at University College, Swansea, in April 1981*, ed. Stephen Mitchell, James A. Arvites (Oxford: B. A. R. 1983), 205–217.

43. Zacharias *H.E.* 9.4a; 9.5a.

44. Geoffrey Greatrex, Robert R. Phenix, Cornelia B. Horn, Sebastian P. Brock, and Witold Witakowski, *The Chronicle of Pseudo-Zachariah Rhetor: Church and War in Late Antiquity* (Liverpool: Liverpool University Press, 2011), 323, note 65.

45. There is a discrepancy in Pseudo-Zacharias' dating of the events, as he first clearly states that the exchange of the prisoners happened after the peace was made in the year of the tenth indiction (i.e. 531/532) (Zacharias *H.E.* 9.5.a), and later he mentions the final peace negotiations and signing of the treaty under the eleventh indiction (i.e. 532/533) (Zacharias *H.E.* 9.7b). G. Greatrex concludes that Domitziolus "was thus returned to the Romans in 531/2, according to PZ, just before the Eternal Peace of 532" (Greatrex, Phoenix, Horn, Brock, Witakowski, *Chronicle of Pseudo-Zachariah,* 325, note 77). This interpretation, though it follows Pseudo-Zacharias' absolute chronology, seems to produce conflict with the relative one. Pseudo-Zacharias does mention that the captives exchange happened as a result of a peace agreement (ܥܢܝܟ); another possibility would be to connect the exchange with a truce that was concluded after the death of Kavades, which ended the siege of Martyropolis (Procopius *Wars* 1.21.23–28; Zacharias *H.E.* 9.6b) in the autumn of 531, but Pseudo-Zacharias uses another term to describe this truce agreement (ܗܕܢܐ), while he consistently uses ܥܢܝܟ to refer to the Endless Peace treaty. It thus seems more plausible to suggest a confusion in chronology (by Pseudo-Zacharias or by his source).

46. PLRE III, s.v. Dagaris, 379.

47. Procopius *Wars* 1.15.4–6.

man of no mean station."[48] Procopius characterizes the returned Dagaris as "an exceptionally able warrior"[49] who later several times defeated the invading Huns. The historian, however, never mentions the name of the "prominent" Persian exchanged for him.

Remarkably, none of the sources mentions the clause protecting the philosophers. There might, however, be a missing piece in this mosaic of sources and evidence regarding the conditions of the Endless Peace treaty.

3. THE MARTYRDOM OF MAR GRIGOR

An anonymous Eastern-Syriac account of the martyrdom of Grigor could perhaps offer some additional information on the clauses of protection within the peace treaty. The text was written most likely in the second half of the sixth century by an author belonging to the Christian milieu of the Persian Empire.[50]

Apart from the religious matters and the actual circumstances of Grigor's martyrdom, the account provides rich data on the political, military, and diplomatic affairs[51] of the reigns of Cavades I (488–496; 498–531) and Chosroes I (531–579)—in particular, of the period between the 520s and 540s. The protagonist of the account, Pīrān-Gušnasp, was a noble Persian who came from an old and famous Zoroastrian family: the house of Mihrān,[52] one the seven most

48. Procopius *Wars* 1.22.18: καὶ Δάγαριν δὲ Ῥωμαίοις ἀπέδοσαν Πέρσαι, ἀντ᾽ αὐτοῦ ἕτερον κεκομισμένοι οὐκ ἀφανῆ ἄνδρα.

49. Procopius *Wars* 1. 22.19: ἦν γὰρ διαφερόντως ἀγαθὸς τὰ πολέμια.

50. For the history of the text and the context: Jullien, *Histoire de Mār Abba (edition),* xiii–xlvii, esp. xliii–xlv regarding the author and the date.

51. Revealing the "explicit interest" of the author in these matters: Adam H. Becker, "Martyrdom, Religious Difference, and 'Fear' as a Category of Piety in the Sasanian Empire: The Case of the Martyrdom of Gregory and the Martyrdom of Yazdpaneh," *Journal of Late Antiquity* 2.2 (2009): 300–336, at 306.

52. For the family: Jullien, *Histoire de Mār Abba (translation),* 47, note 15; about the house of Mihrāns, see D. E. Mishin, *Khosrov I Anushirvan (513–579), Ego Ėpokha I Ego Zhizneopisanie I Pouchenie v Istorii Miskaveĭkha* (Moskva: Institut vostokovedeniiа̂ RAN, 2014), 86–87, 351–354; Parvaneh Pourshariati, *Decline and Fall of the Sasanian Empire: The Sasanian-Parthian Confederacy and the Arab Conquest of Iran* (London; New York: I.B. Tauris, 2008), 48–49; David M. Lang, "Iran, Armenia and Georgia," in *The Cambridge History of Iran*, ed. E. Yarshater (Cambridge: Cambridge University Press, 1983), 3: 505–536 at 520; see also Katarzyna Maksymiuk, "Piran Gusznasp (Grzegorz) z rodu Mehran-chrześcijański dowódca armii irańskiej," in *Istorìâ religìj v Ukraïnì : naukovij šoričnik*, ed. O. Kiričuk, M. Omel'čuk (L'vìv 2017): 267–275; Katarzyna Maksymiuk, "The Pahlav-Mehrān family faithful allies of Xusrō I Anōšīrvān," *Метаморфозы истории* 6 (2015): 163–179; Katarzyna Maksymiuk, "The Parthian nobility in Xusrō I Anōšīrvān court," in *Elites in the Ancient World*, 2, ed. D. Okoń and P. Briks (Szczecin, 2015): 189–198.

powerful Iranian dynasties.[53] Shah Cavades appointed him a high military commander of Iberia and Albania, the northern regions of Persia.[54] It was a high appointment, probably that of a *spāhbed*, one of the four superior generals of Persia.[55] Sigillographic evidence confirms that the Mihrāns continued to be appointed *spāhbeds* of the north into the time of Chosroes I and probably after.[56]

Around the year 518[57] or 521[58] Pīrān-Gušnasp converted to Christianity, taking the name Grigor (*Mart. Grig*. 5–6). The conversion led to persecution:[59] Grigor's property was confiscated and he was imprisoned for three years (*Mart. Grig*. 7). After three years of imprisonment, Grigor was pardoned and restored to his previous position, which he held for a long time afterwards (*Mart. Grig*. 8). During a Roman incursion into the region under his charge, Grigor was taken prisoner and deported, along with numerous other captives (*Mart. Grig*. 8). The general was brought to the Emperor (most likely already Justinian[60]), who, impressed by the prominence of Grigor's position in Persia, and especially by his faith, welcomed the captive with numerous gifts and an even more important position than Grigor had held in Persia (*Mart. Grig*. 8). Nothing is known from other sources about the allegedly high military appointment of Grigor in the Roman Empire. It was, however, not unusual for both

53. About the seven houses, see Arthur Christensen, *L'Iran sous les Sassanides* (Copenhague; Paris: Levin and Munksgaard; Librarie Orientaliste Paul Geuthner, 1936), 101; Pourshariati, *Decline and Fall of the Sasanian Empire*, 24, 48–49.

54. *Mart. Grig.* 3. For localization of the "region of Gurzanāyē and Arranāyē" see Jullien, *Histoire de Mār Abba (translation),* 48, note 16; Stephen H. Rapp, *The Sasanian World through Georgian Eyes: Caucasia and the Iranian Commonwealth in Late Antique Georgian Literature* (Farnham: Ashgate, 2014), 308; Vakhtang Goilaże, "P'iran Gušnaspis martvilobis c'nobat'a mnišvneloba V-VI saukuneebis sak'art'velos istoriisat'vis", *Sak'art'velos SSR mec'nierebet'a akademiis Mac'ne - istoriis, ark'eologiis, et'nograp'iasa da khelovnebis istoriis* seria 2 (1988): 89–102 at 90.

55. Jullien, *Histoire de Mār Abba (translation),* 47, note 15; Rika Gyselen, "SPĀHBED", in *Encyclopaedia Iranica* (2004), s.v. *Spāhbed*. Available at http://www.iranicaonline.org/articles/spahbed; Rika Gyselen, *The Four Generals of the Sasanian Empire: Some Sigillographic Evidence* (Roma: Istituto italiano per l'Africa e l'Oriente, 2001), at 15 for the responsibilities of the generals.

56. Jullien, *Histoire de Mār Abba (translation),* 53, note 52; Gyselen, *The Four Generals,* 28–29, 31); Rika Gyselen, *Nouveaux matériaux pour la géographie historique de l'empire Sassanide: Sceaux administratifs de la collection Ahmad Saeedi* (Leuven: Peeters, 2002), 181–182, 185. For the debate regarding the period: Pourshariati, *Decline and Fall of the Sasanian Empire*, 101–104.

57. Jérôme Labourt, *Le Christianisme dans l'empire Perse sous la Dynastie Sassanide: (224–632)* (Paris: V. Lecoffre, 1904), 178.

58. For the date, see Greatrex, *Rome and Persia*, 142–143, note 9.

59. For the circumstances of Cavades' imposing Zoroastrianism on Iberia, see Greatrex, *Rome and Persia*, 142; Braund, *Georgia in Antiquity*, 282–283.

60. The mentioned incursion of the Romans must have been that of 528. On the conflict see Greatrex 1998, 139–147, esp. 145–146.

states to employ renegades, defectors, and captives from the adversary's state to utilize their expertise, especially in military affairs.[61]

The *Martyrium* further informs us that in the third year of Chosroes' reign, a Persian ambassador was sent to the Roman Emperor to conclude a peace treaty ("so that the peace spreads over the two kingdoms"), and that this envoy, Zabergān, asked the Emperor to extradite Mar Grigor. The Emperor was reluctant: first, because of the general's military merits and, second, due to concern that Grigor would renounce his faith in Persia, where a person of his stature would not be allowed to remain Christian. According to the *Martyrdom*, however, Grigor himself asked to be released: as a convert of the Church of the East he was unhappy with the Chalcedonian environment in Constantinople.[62] A remarkable detail is also reported by the *Martyrdom*: the Emperor made the Persian ambassador promise that Grigor would not be persecuted as a Christian "once he returns to the country of his fathers." Zabergān agreed and ensured that everything necessary was done.

It seems plausible that this promise was confirmed by the peace treaty. Grigor did not return to Persia immediately together with the envoy: he was released only after the treaty was concluded. The text mentions the establishment of an agreement between the two states and Grigor's subsequent journey to Nisibis, where he joined the ambassador. The text also makes it possible to suggest that the safeguard for Grigor was included as a clause or a condition of the treaty.[63]

Grigor was welcomed back by the shah and was once again restored in a high position (*Mart. Grig.* 9).[64] The text of the *Martyrdom* continues, describing the

61. E.g. PLRE III: Narses 2, 928–930, Aratius, 103–104, Isaaces 1, 718; A. H. M. Jones, J. R. Martindale, *The Prosopography of the Later Roman Empire* (Cambridge: Cambridge Univ. Press, 1980), 2 (PLRE II), Constantinus 14, 313–314; A. H. M. Jones, J. R. Martindale, *The Prosopography of the Later Roman Empire* (Cambridge: Cambridge Univ. Press, 1971), 1 (PLRE I): Hormisdas 2, 443; also Ammianus Marcellinus, *Res gestae* 18.5.6–8, 18.8.5–6. A Persian general Bleschames, taken prisoner by Belisarius in 54, was later dispatched to Italy to fight the Goths (Procop. *BP* 2.19.24–25).

62. "à cause du blasphème des Romains concernant la nature divine et la contre-vérité de leur croyance en la nature corporelle de Notre-Seigneur Jésus-Christ" (Jullien, *Histoire de Mār Abba (translation)*, 54).

63. Jullien, *Histoire de Mār Abba (translation)*, 54: "Pius, lorsque cette clause fut conclue entre eux, il établit un arbitre entre Dieu et eux deux." Indeed, the term "ܬܘܒܐ" here would rather suggest the meaning "clause/condition/agreement" within a broader peace agreement: Louis Costaz, *Dictionnaire Syriaque-Français. Syriac-English Dictionary* (Beyrouth: Impr. Catholique, 1963), 394; R. Payne Smith, J. Payne Smith, *A Compendious Syriac Dictionary: Founded upon the Thesaurus Syriacus of R. Payne Smith* (Oxford: Clarendon Press, 1903), 616.

64. A reference in the text to an "even more important position than before" is considered to be a figure of style, given the already extremely high position that Grigor had held, and considering that the

new imprisonment of Grigor, the resuming of hostilities (now those of 540[65]) between the empires, the following wave of Christian persecutions in Persia in 541,[66] and the martyrdom suffered by Grigor in 542.[67]

The *Martyrdom of Mar Grigor* should be considered for wider incorporation into the body of historical sources, with the necessary methodological reservations and caution. The focus of the account is certainly placed on the story of the life, miracles, and martyrdom of Grigor, while other events remain a background. This background, however, is described rather thoroughly and is in line with information provided by other sources. The rich and valuable data on the organization of the Sasanian administrative system, military hierarchy, and Zoroastrian religious practices provided by the *Martyrdom* is consistent and can be confirmed by other independent sources.[68] The historical material included shows a good knowledge on the part of the anonymous author regarding inter-imperial politics and military affairs.[69] The text also shows awareness of diplomatic practices.[70] The historicity of the events described in the *Martyrdom*, generally accepted by scholars, justifies an integration of the data provided by the account into the available historical evidence.[71] The text, however, is not free from some chronological inconsistencies.

The date of the negotiations and of the peace treaty

The date of the peace negotiations that resulted in the extradition of Grigor raises questions and has been variously interpreted in historiography. The mission is

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text mentions that he was entrusted with power over the same region as before; Jullien, *Histoire de Mār Abba (translation)*, 54, note 62.

65. Braund, *Georgia in Antiquity*, 292.

66. On these persecutions, see Bernadette Martin-Hisard, "Le 'Martyre d'Eustathe de Mcxeta': Aspects de la vie politique et religieuse en Ibérie à L'époque de Justinien," in *ΕΥΨΥΧΙΑ. Mélanges offerts à Hélène Ahrweiler*, 493–520, Byzantina Sorbonensia (Paris: Publications de la Sorbonne, 2016).

67. Greatrex, Lieu, *Eastern Frontier*, 271, note 38; Paul Devos, "Les martyrs Persans à travers leurs actes Syriaques," in *Atti del convegno sul tema: La Persia e il mondo Greco-Romano (Roma 11–14 Aprile 1965)*, Problemi Attuali Di Scienza E Di Cultura (Rome, 1966): 213–225, 216; Antoine Guillaumont, "Justinien et l'église de Perse," *Dumbarton Oaks Papers* 23/24 (1969): 39–66 at 48.

68. See, e.g., Jullien, *Histoire de Mār Abba (translation)*, xxiii–xxv.

69. Jullien, *Histoire de Mār Abba (edition)*, xliii–xliv; Becker, *Martyrdom, Religious Difference*, 307; Goilaże, *P'iran Gušnaspis martvilobis*: 89–102.

70. Thus, after the imperial reception the Persian ambassador is said to have asked for permission to be released. It was typical for Late Roman diplomatic interactions that no embassy was allowed to return home without being officially allowed to do so (Nechaeva *Embassies*, 44).

71. See G. Greatrex for the integration of this source in his reconstruction of the events around the conflict in Caucasus in the 520s (Greatrex, *Rome and Persia*, 139–147) and G. Greatrex and S. Lieu on the situation on the Roman-Persian frontier in 530s and 540s (Greatrex and Lieu, *Eastern Frontier*, 99, 110).

said to have been sent on the third year of Chosroes' reign.[72] Chosroes became king in September of 531, which would place the event in 533/4. G. Greatrex and S. Lieu note that "the author of the *martyrium* appears to synchronize the Seleucid year 850 (538/9), referred to at the opening of the work, with the tenth year of Khusro's reign (540/1), since he uses both datings for the renewal of persecutions."[73] Thus, they conclude that "this embassy should be dated to the mid-530s."[74] The mis-synchronisation could indeed result in a two-year gap between the actual tenth year of Chosroes' reign (i.e. 540/1) and the 850th year of the Seleucid era (i.e. the year 538/9). However, these two years of difference should be subtracted from the year 533/4 (the actual third year of Chosroes' reign), resulting in 531/2, not added to it—resulting in "mid-530" (i.e. 535/6).[75]

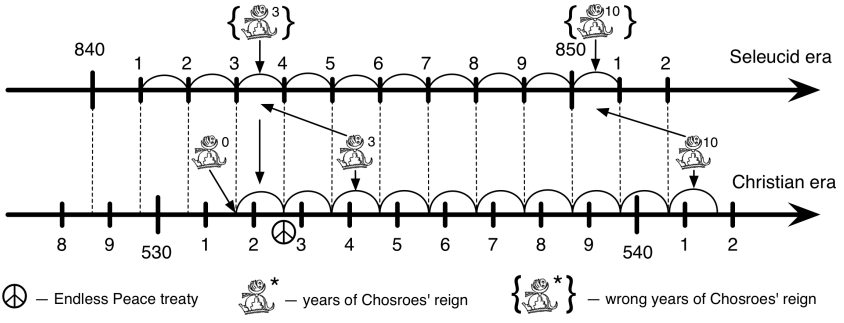


FIGURE 1. Comparison of chronologies within the *Martyrdom of Mar Grigor*.

Whether we assume that, according to the intended chronology of the *Martyrdom*, the peace negotiations happened in the year 533/4 (the third year of Chosroes' actual reign) or in the year 531/2 (according to the distorted chronology), we are only aware of one peace treaty concluded between Rome and Persia in these years: the Endless Peace treaty, which was most likely signed in September of 532.[76]

72. *Mart. Grig.* 9.

73. Greatrex and Lieu, *Eastern Frontier*, 268, note 59.

74. Greatrex and Lieu, *Eastern Frontier*, 268, note 59. G. Greatrex and S. Lieu also connect these negotiations with the embassy of Zabergan mentioned by Procopius (Procopius *Secret History* 2.33), which took place "not much before 541." See further against this juxtaposition.

75. In other words, if the author was mistaken in connecting the 850th year of the Seleucid era (i.e. the year 538/9) with the 10th year of Chosroes' reign, it would put the beginning of this reign in the year 529/30, making 531/2 the third year of his rule.

76. Procopius *Wars* 1.22.17; Malalas 18.76; *Chronicle of Edessa* 104, September 532; Zacharias *H.E.* 9.7b. (see also above, note 45). See Greatrex, *Rome and Persia*, 214–215, note 5, with a remark on "some

It thus seems possible to identify the diplomatic agreement mentioned in the text with the Endless Peace treaty.[77]

Another apparent discrepancy in the Syriac account regards the figure of the envoy who conducted the talks on behalf of Grigor, Zabergan. This close associate of Chosroes is mentioned several times by Procopius.[78] In the *Secret History* Procopius alludes also to Zabergan's embassy to Constantinople. In 541 Zabergan is said to have received a letter from Theodora: the Empress asked him to argue before the shah in favor of peace with the Romans and mentioned his recent visit.[79] Nothing else is known about this mission, which might have been connected to the hostilities of 540/541. It seems highly unlikely that the embassy of Zabergan, alluded to by Procopius and the one described in the *Martyrdom*, should be identified as the same. In Theodora's letter the visit of Zabergan was referred to as "recent, "[80] so it must have taken place in 541 or not long before. However, placing the negotiations about Grigor's fate around the years 540/541 would contradict the following internal chronology and logic of the *Martyrdom*:

- in the third year of Chosroes' reign the peace treaty between the empires was concluded and Grigor was released[81]
- a "long time"[82] passed[83]
- Grigor was arrested and afterwards spent seven years in prison[84]
- on the ninth year of Chosroes' reign the hostilities between the empires resumed[85]

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dispute" in the scholarship and some fluctuations in the source (particularly in Marcellius Comes *Chronicle* s.a. 533).

77. Jullien (*Histoire de Mār Abba (translation)*, 53, note 55, and Becker, *Martyrdom, Religious Difference*, 307) connect the negotiations with the peace treaty of 532 without analyzing the chronological discrepancies. See also Maksymiuk, *Piran Gusznasp* 2017, 267–275.

78. In the beginning of Chosroes' reign he successfully conspired against and caused the downfall of Mebodes, another prominent man in the shah's entourage (Procopius *Wars* 1.23.25–26) (PLRE III, Zaberganes 1, 1410). During the resumed hostilities of 540 he is present at the front during the fall of Antioch, urging Chosroes to massacre the citizens (Procopius *Wars* 2.8.30–32); in 544 he participates in negotiations with the Romans about the ransom of Edessa (Procopius *Wars* 2.26.16–19) (Dignas, Winter, *Rome and Persia*, 39–40).

79. Procopius *Secret History* 2.32–35.

80. οὐ πολλῶ πρότερον.

81. *Mart. Grig.* 9.

82. ܫܪܝܫܝ ܫܢܐ ܕܒ ܐܚܪ ܒ.

83. *Mart. Grig.* 10.

84. *Mart. Grig.* 12.

85. *Mart. Grig.* 13.

- in the next year the shah unsuccessfully tried to convince Grigor to denounce his faith[86]
- after many tortures, Grigor was executed[87]

This internal chronology leaves almost no slot for that "long time" after Grigor's return and before his arrest. If by the time of meeting with Chosroes (in the tenth year of his rule) or by the time of the martyrdom[88] Grigor had spent seven years in prison, this would mean that he had been put there right after or very soon after his return to Persia. However, as discussed above, the *Martyrdom* mis-synchronizes the Seleucid era and the years of the rule of Chrosroes, accounting for a possible two-year "compression." If we assume that Grigor returned home after the conclusion of the Endless Peace treaty in 532, and that he consequently was imprisoned for seven years until 541 (the year of the meeting with Chosroes) or until 19 April of 542[89] (the date of his martyrdom), that would place his arrest some time around 535/536, allowing for at least 3–4 years of that "long time" in between.

The embassy of Zabergan, mentioned by Procopius, took place during the hostilities that are described as a background for the final tragic events of Grigor's life;[90] the embassy of Zabergan mentioned by the *Martyrdom* took place, according to the text, more than seven years before that, thus excluding the juxtaposition of the two diplomatic missions.[91]

No other source directly speaks about a visit of a Persian emissary to Constantinople during the preparation of the Endless Peace treaty. The negotiations, as far as we know, were mostly led by the Roman diplomats.[92] However, John Malalas mentions that in 531, still under Cavades, a Persian

86. *Mart. Grig.* 13–14.

87. *Mart. Grig.* 15–26.

88. There is no direct indication in the text regarding whether these seven years were counted up to the time of Grigor's martyrdom or, which seems more likely, until the moment when he was brought to the shah.

89. Greatrex and Lieu 2002, 271, note 38; Paul Peeters, "Observations sur la vie syriaque de Mar Aba, catholicos de l'Eglise perse (540–552)," in *Recherches d'histoire et de philologie orientales*, ed. Paul Peeters (Brussels: Société des Bollandistes, 1951), 1:117–63, at 136, note 4.

90. *Mart. Grig.* 13–14.

91. Even if we doubt the number of years Grigor was imprisoned after his return to Persia, the *Martyrdom* associated the embassy of Zabergan with the third year of Chosroes' reign and the renewed hostilities—when the mission of Zabergan mentioned by Procopius occurred—with the ninth year of the shah's rule.

92. Procopius *Wars* 1.21–22; 18.68; 18.76. PLRE II, Rufinus 13, 954–957; PLRE III, Hermogenes 1, 590–593; PLRE III, Alexander 1, 41–42; PLRE III, Thomas 4, 1315; PLRE II, Strategius 9, 1034 -1036.

ambassador sent to the Roman Emperor handed over a letter from the shah and was dispatched back again bearing gifts.[93] Justinian later received another letter informing him that Chosroes had seized power, and "containing a proposal for a three months' truce."[94] This letter was most probably also carried by a Persian envoy, as protocol demanded.[95] Procopius, who focuses on the course of the military events and on Roman diplomats, omits any information on both these embassies and only mentions a notification of Chosroes' accession to power which was received by the Persian generals.[96] As we cannot assume that we are informed about all the embassies that were exchanged in the course of the Endless Peace preparations,[97] we should not exclude the possibility that a separate embassy was dispatched from the Persian to the Roman court to discuss the delicate matter of the extradition of Grigor.

4. MAR GRIGOR AND THE ENDLESS PEACE TREATY

Despite the chronological inconsistencies in the account mentioned above, it seems plausible to identify the peace agreement that included a guarantee of protection for Mar Grigor as the Endless Peace treaty, signed by Chosroes and Justinian in 532. Following this interpretation, I suggest comparing the information provided by the *Martyrdom of Mar Grigor* with the data available from the other sources that are traditionally used by scholars to reconstruct the conditions of this treaty. This collation will allow us to put forward several conjectural proposals for reinterpreting the conventional data on the conditions of the Endless Peace treaty.

Comparing the text of the Syriac *Martyrdom* with Procopius' evidence about an able Roman warrior Dagaris who was exchanged for a Persian of "no mean station,"[98] it seems possible to suppose that this prominent Persian was Pīrān-Gušnasp/Mar Grigor. Though the suggestion remains conjectural, the noble provenance and the high status of Grigor both in Persia and in Rome, as well as the separate negotiations about his fate, might argue in favor of this

93. Malalas 18.56.

94. Malalas 18.69.

95. Nechaeva, *Embassies*, 103–105.

96. Procopius *Wars* 1.21.26–27.

97. We are, indeed, only informed of a small fraction of the embassies that were constantly circulating between the powers: Evangelos K. Chrysos, "Byzantine Diplomacy, A.D. 300–800: Means and Ends," in *Byzantine Diplomacy : Papers from the Twenty-Fourth Spring Symposium of Byzantine Studies, Cambridge, March 1990*, ed. Jonathan Shepard, Simon Franklin (Aldershot, Hampshire: Variorum, 1992): 25–39, 32; Nechaeva, *Embassies*, 105.

98. Procopius *Wars* 1. 22.18.

hypothesis. We can only guess why Procopius has omitted the information about the Persian counterpart of Dagaris. If, as discussed above, Grigor's release was accompanied by a special safeguarding condition in the treaty, one may suppose that the clause in question might not have been made public[99].

Comparison of the *Martyrdom of Mar Grigor* with Agathias' description of the emigration and return of the seven philosophers reveals fascinating similarities. The Hellenic philosophers were warmly received in Persia by the shah, but wanted to return home despite all the dangers.[100] The Christian Persian general was welcomed and well treated by the Emperor, but was eager to go back, though he risked persecution.[101] Both rulers expressed concerns regarding the well-being of their protégés upon their return home.[102] According to Agathias, a clause was included in the Endless Peace treaty, on Chosroe's insistence, to guarantee the religious tolerance and safety for the philosophers.[103] According to the Syriac *Martyrdom* account, the fate of Mar Grigor was discussed during the negotiations regarding the same diplomatic agreement and Justinian made the Persians secure religious tolerance and safety for Grigor, most likely by a condition of the same treaty.[104] In the light of the two pieces of evidence taken together, it appears tenable to conclude that two clauses of protection were integrated in the peace treaty: one for the Hellenic philosophers coming back to the Roman Empire and one for the Christian Persian general returning to Persia.

Would Justinian have cared about protecting a Christological antagonist, a convert of the Church of the East, because of the traditional Roman imperial support of the Christian population in Persia?[105] Was Chosroes' support motivated by his will to act "as a patron of learning and acclaimed philosopher-king"?[106] Both monarchs undoubtedly enjoyed their roles as protectors "of persecuted minorities", the roles that also gave them an opportunity "to meddle in the internal affairs"[107] of their adversary. As the two cases discussed concerned

99. See further about the suggestion that this clause might have been made secret.

100. Agathias 2.31.

101. *Mart. Grig.* 8–9.

102. Agathias 2.31; *Mart. Grig.* 9.

103. Agathias 21.31.4.

104. *Mart. Grig.* 9.

105. As A.D. Lee puts it: "There was a tradition of Roman emperors expressing paternalistic concern for the rights of the Christian population in Persia when it suited them" (A. D. Lee, "Evagrius, Paul of Nisibis and the Problem of Loyalties in the Mid Sixth Century," *The Journal of Ecclesiastical History* 44.4 [1993]: 569–85, at 579).

106. Kaldellis, *Procopius*, 252, note 24.

107. Kaldellis, *Procopius*, 252, note 24 about Chosroes.

individuals, not entire religious communities, the mutual concessions should be understood within the framework of symbolic communication between the rulers, rather than in the context of global inter-state politics. In this framework, the existence of two symmetrical requirements and liabilities would have provided the necessary balance and reciprocity in relations between the sovereigns.[108]

Including the safeguarding assurances in the peace treaty could have also been a way to resolve the contradiction between the responsibility of protecting of the suppliants and the duty to release them.[109] We know that the conclusion a diplomatic alliance normally required that both sides release the previously accepted fugitives/deserters/runaways.[110] The philosophers found their asylum in the court of Chosroes and from the Roman perspective their status was likely that of fugitives. Thus, the conclusion of a peace treaty with Constantinople was very likely to oblige Chosroes to send these refugees back home. It cannot be excluded that demands for extradition stimulated both returns, not only the repatriation of Grigor.[111]

From other sources we know that the Endless Peace treaty regulated several issues of population transfer and exchange of individuals. No evidence appears comprehensive. Only Agathias mentions the story of the philosophers and the clause of protection. Yet, he says nothing about any other safeguarding clause or alleged extradition. Only the *Martyrdom of Mar Grigor* relates the

108. See above, p. 364.

109. For these ambiguous obligations, see Nechaeva, *Défection et trahison*, 236–237; Élisabeth Malamut, "Réfugiés politiques et transfuges à Byzance," in *Thémis en diplomatie,* 243–59, at 252–256.

110. Nechaeva, *Embassies*, 111–112. The peace agreement signed between Justinian and Chosroes in 562 differentiated between "flight from the ravages of war and defection during peacetime, perhaps in search of political asylum" (Maas, *Backdrop to Exile*, 165; Nechaeva, *Défection et trahison*, 234–241), emphasizing the mutual obligation of the sides to not accept and to return such fugitives (Menander *fr.* 6.1). The rule of the obligatory extradition of asylum seekers in the case of the conclusion of an alliance, however, also existed earlier. Catherine Wolff, *Déserteurs et transfuges dans l'armée Romaine à l'époque Républicaine* (Napoli: Jovene, 2009), 157–167.

111. As Grigor's release was initiated by the Persian demand for his extradition, a similar request from Constantinople might have preceded the philosophers' return to the Empire. We do not have enough data to say for sure which demand came first. It seems less likely that Justinian would have initiated the process of extradition to have the dissident philosophers back. However, if Chosroes had asked to return Mar Grigor, the counter-claim of Justinian to return the philosophers appears plausible. The first of these extradition claims might have triggered a symmetrical request and was followed by the mutual demand of safe conduct for the released individuals. Though the philosophers are said to have arrived in, and to have left, Persia voluntarily, as mentioned, Agathias' account most probably depended on the philosophers' version of the events. Averil Cameron, *Agathias on the Sassanians*, 175 and Alan Cameron, *Last Days* (2016), 218–221. Information about an extradition claim might not have been included in that, supposedly biased, story.

circumstances of Grigor's return and refers to the safe conduct that he received. Neither Procopius nor Malalas provide any explicit data on these matters. One can assume that Agathias omitted some of the details, as he was little concerned in his digression with matters of diplomacy.[112] Anthony Kaldellis argues that Procopius was aware of the existence of the clause protecting the philosophers and likely also knew about their consequent fate, but chose to omit this information. This discretion, according to Kaldellis, was caused by his concern for the well-being of the philosophers in the empire of Justinian.[113] However, it should be emphasized that for the Endless Peace treaty we possess nothing similar to Menander's account of the conditions of the Roman–Persian peace treaty of 562:[114] no author who left us a description of the peace of 532 aimed to provide a reader with a full and detailed report of all the clauses in the contract. It is therefore possible that the two clauses of protection, one concerning the philosophers and the other concerning Mar Grigor, just did not find their way into the sources in full. The issue was of a rather private nature and ultimately of no primary importance for international politics.[115]

One could also speculate that the fragmentary and incomplete character of the available data may be explained by the confidential format of the articles containing the agreed safe-conducts. While we are not directly aware of any "secret protocols" to have accompanied diplomatic agreements—which, by definition, can hardly prove their non-existence or existence—secret talks are known to have accompanied diplomatic negotiations on several occasions.[116] Remarkably, in the peace of 562 the clause regarding protection of the Christians in Persia was agreed upon separately and most probably formed, even if not secret, a special annex to the main text of the treaty.[117] In the hypothesis that the two sensible clauses in question of the peace of 532 had a confidential

112. Alan Cameron suggest that "the explanation of all the inconsistences and contradictions is that Agathias is simply using the philosophers as a means to ridicule the philosophical pretensions of Chosroes" (Alan Cameron, *Last Days* (2016), 216).

113. Kaldellis, *Procopius,* 101–106.

114. The historian followed the account of Peter the Patrician and seems to have quoted the articles of the contract in full. See, e.g., Blockley, *Menander the Guardsman*, 12, note 52 and 260, notes 84–84.

115. As suggested by Alan Cameron with regards to the safe conduct for the philosophers. Alan Cameron, *Last Days* 2016, 121–122.

116. E. Nechaeva, "Les activités secrètes des ambassadeurs dans l'antiquité tardive," in *Ambassadeurs et ambassades au coeur des relations diplomatiques: Rome, Occident Médiéval, Byzance (VIIIe s. avant J.-C. - XIIe s. après J.-C.)*, ed. Audrey Becker, Nicolas Drocourt (Metz: Université de Lorraine, 2012), 183–202 at 183–196.

117. Menander *fr.* 6.1. 398–407. See above note 16.

status, it seems, on the one hand, reasonable to suppose that the authors, relying on the official accounts of the treaty terms and on the information provided by the diplomats,[118] might not have had access to the "classified" part of the agreement. On the other hand, it appears likely that the very subjects of the safe-conducts (i.e. the philosophers and Mar Grigor) could have shared some and omitted the other details of their return from abroad. We do not know whether the author of the *Martyrdom of Mar Grigor* was personally acquainted with his protagonist. The anonymous hagiographer is believed to originate from the same social milieu and was undoubtedly very well-informed about the circumstances of Grigor' life.[119] As already mentioned, it is commonly accepted that Agathias's evidence originates from the philosophers directly, or from a memoir written by one of them.[120]

It should also be noted that the eventual degree of effectiveness of the two clauses of protection was different. While we have indirect confirmations that at least some of the philosophers were alive and active after leaving Persia,[121] the *Martyrdom* informs us that Grigor's immunity from persecution did not last long. We possess no evidence that to allow us to speculate about any retaliation measures, however.

CONCLUSIONS

Adding the evidence provided by the East-Syriac *Martyrdom of Mar Grigor* to the data available from the "conventional" Greek historiography makes it possible to re-examine some of the conditions of the Endless Peace treaty of 532, and, in particular, the clause of protection for the Hellenic philosophers. Though this account does not offer direct additional insights into the much discussed problem of the place of the philosophers' return, it does probably shed more light on the circumstances of their departure.

It seems possible to suggest that the clause, mentioned by Agathias, guaranteeing protection to the seven Hellenic philosophers after their return to the Roman Empire was not unilateral: the contract likely contained a symmetrical safe conduct for the Christian general Mar Grigor/Pīrān-Gušnasp upon his

118. See above notes 29, 30.

119. Jullien, *Histoire de Mār Abba (translation)*, xliii; Goilaže, *P'iran Gušnaspis martvilobis,* 89.

120. Averil Cameron, *Agathias on the Sassanians*, 175 and Alan Cameron, *Last Days* (2016), 218–221.

121. Edward Watts, "Where to Live the Philosophical Life in the Sixth Century? Damascius, Simplicius, and the Return from Persia," *Greek, Roman, and Byzantine Studies* 45.3 (2010): 285–315, at 286–287; Alan Cameron, *Last Days* (2016), 223–240. Agathias 2.31.3 insists on the same.

return to Persian territory. The reciprocal obligations of the sides to ensure the well-being of the individuals in question might have been included in a part of the treaty that was not publicly available.

Two additional conjectural suggestions can also be made. The anonymous prominent Persian captive, exchanged, according to Procopius, for the Roman bodyguard and spy Dagaris, could have been the Christian general and soon-to-be martyr Mar Grigor/Pīrān-Gušnasp. The homecoming of the philosophers might have not been entirely voluntary, being stimulated by a Roman extradition demand, similar to the demand for Grigor's release made by the Persians, thus conforming to the principles of diplomacy and international relations. ■